

Passport Act, 2019

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Amending Acts

1. Act to Amend Some Nepal Acts, 2082 2082.04.14

Act No. 11 of the year 2076

An Act Made to Amend and Consolidate Laws Relating to Passports

Preamble: Whereas, it is desirable to regulate and systematize matters relating to passports, including travel permits, issued to Nepali citizens going abroad, and to amend and consolidate the prevailing laws relating to passports;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Passport Act, 2076".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act or in an order published by the Government of Nepal in the Nepal Gazette.

(b) "Mission" means a Nepali Embassy, Permanent Mission, Nepali Consulate General, Consulate, or Special Mission located in a foreign country, and the term also includes any office abroad established by the Government of Nepal to perform diplomatic work.

(c) "Ministry" means the Government of Nepal, Ministry of Foreign Affairs.

(d) "Travel permit" means a travel permit issued pursuant to Section 17.

(e) "Passport" means a machine-readable, electronic, or biometric passport issued by the Government of Nepal to a Nepali citizen going abroad.

(f) "Department" means the Department of Passports.

(g) "Travel on official business" means travel for specified work pursuant to a decision of the Federal or Provincial Government and their subordinate bodies, local level, Federal Parliament, Provincial Assembly, and constitutional bodies, as well as travel on a formal invitation from foreign, governmental, semi-governmental, or internationally recognized organizations. Chapter-2

Relating to Passports

3. Passport to be carried: (1) A Nepali citizen, when traveling abroad, shall carry a passport with a remaining valid period.

(2) Notwithstanding anything written in sub-section (1), if pursuant to a treaty or agreement between the Government of Nepal and any foreign state or government, a Nepali citizen is not required to have a passport to travel to a certain country, travel to such country may be undertaken without a passport. 4. Issuance of passport: (1) The authority to issue a passport shall vest in the Government of Nepal.

(2) The work of issuing a passport on behalf of the Government of Nepal pursuant to sub-section (1) shall be done by the Department.

(3) While issuing a passport or travel permit, the Department shall issue it in accordance with the prevailing standards of the International Civil Aviation Organization (ICAO). 5.

Types of passport: (1) The types of passports to be issued pursuant to Section 4 shall be as follows:- (a) Diplomatic passport, (b) Special passport, (c) Service passport, (d) Ordinary passport. (2) The validity period of a passport issued pursuant to sub-section (1) shall be as prescribed. 6. Diplomatic passport: The Department shall issue a diplomatic passport to such officials as prescribed who travel abroad on official business or for special work, upon receipt of a decision or recommendation from the concerned Ministry, constitutional body, or secretariat. 7. Special passport: The Department shall issue a special passport to such officials and employees as prescribed who, being nominated by the Government of Nepal, Provincial Government, or any government body, travel abroad for official work, study, study tour, or training, upon receipt of a written communication along with a decision from the concerned body. 8. Service passport: (1) The Department shall issue a service passport to personal assistants and classless employees accompanying an Ambassador, Permanent Representative, Special Representative, Consul General, and gazetted level employees posted to a mission, upon receipt of a written communication from the Ministry. (2) The Department may issue a service passport to a Nepali citizen working as a local employee in a mission, upon receipt of a written communication from the Ministry or the mission. 9. Ordinary passport: (1) The Department may issue an ordinary passport to a Nepali citizen. (2) Other provisions relating to the ordinary passport shall be as prescribed. 10. Application for passport: (1) A Nepali citizen desiring to obtain a passport shall submit an application to the Department, Mission, or prescribed body, in the format as prescribed, attaching the original and a copy of the Nepali citizenship certificate or the original and a copy of the national identity card issued by the Government of Nepal, along with documents as prescribed. (2) Notwithstanding anything written in sub-section (1), in the case of a minor Nepali citizen below the age of sixteen years, any one of the applicant's father, mother, guardian, or the person in charge shall submit the application attaching documents as prescribed. (3) Even if none of the father, mother, guardian, or person in charge of the minor has submitted an application for issuing a passport in the name of the minor, the Department may issue a passport in the following circumstances:- (a) If a court has issued an order to issue a passport in the name of such minor, or (b) In other circumstances as prescribed. (4) Upon examining an application for a passport filed pursuant to sub-sections (1) and (2), if the Department finds that the passport can be issued, it shall keep a record thereof and issue the passport. 11.

Distribution of passport: (1) The body to which the application for a passport was submitted shall keep a record and distribute the passport. (2) Other provisions relating to distribution of passport shall be as prescribed. 12. Not to issue or to withhold passport: (1) Notwithstanding anything written elsewhere in this Act, a passport may not be issued or may be withheld in the name of the following persons:- (a) A person against whom an investigation officer has sent a written communication not to issue or to withhold a passport

in connection with an investigation into an offense relating to passport, immigration, corruption, money laundering, human trafficking, kidnapping, narcotics, illegal arms trafficking, organized crime, or terrorism, (b) A person against whom a case is pending in court on a charge of an offense relating to passport, immigration, corruption, money laundering, human trafficking, kidnapping, narcotics, illegal arms trafficking, organized crime, or terrorism, where the court has sent a written communication not to issue or to withhold the passport of such person pursuant to a court order, (c) A person who has been convicted by a court of an offense relating to passport, immigration, corruption, money laundering, human trafficking, kidnapping, narcotics, illegal arms trafficking, organized crime, or terrorism and is serving a sentence, (d) A person who has been blacklisted under prevailing law for failing to repay a loan from a bank or financial institution, (e) A person against whom the Government of Nepal or a court has imposed a travel ban or ordered not to issue a passport or to withhold an already issued passport with reasonable cause, (f) A case where the passport issuing body has decided not to issue or to withhold the passport stating grounds and reasons, (g) A case where the passport holder has a passport issued in his/her name with a remaining validity period of more than one year. (2) If the Department is unable to issue an ordinary passport for a reason under sub-section (1), it shall inform the concerned applicant accordingly. (3) In the situation referred to in clause (a) of sub-section (1), if a court orders the issuance of a passport or not to withhold the passport, a passport shall be issued in the name of such person. (4) If a person is acquitted by a court for an offense under clause (b) of sub-section (1), or amended by the Act to Amend Some Nepal Acts, 2082, if the sentence for an offense under clause (c) is served as per law, a passport shall be issued in the name of such person. (5) If the concerned body sends a written communication stating that the situation under clause (d), (e), or (f) of sub-section (1) no longer exists, a passport may be issued in the name of such person.

13. More than one passport may be issued: Notwithstanding anything written elsewhere in this Act, a new passport may be issued while the validity period of the passport still remains in the following circumstances:-

- (a) If a holder of a diplomatic or special passport applies to obtain an ordinary passport,
 - (b) If a holder of an ordinary passport applies to obtain a diplomatic or special passport under prevailing law.
14. Passport may be issued while validity period remains: Notwithstanding anything written in clause (chha) of sub-section (1) of Section 12, even if the passport holder has a passport issued in his/her name with a remaining validity period of more than one year, a new passport may be issued in the following circumstances:-

- (a) If the passport has become old and illegible, torn, worn out, or has errors in details and is unfit for use,
 - (b) If the pages of the passport are filled and there are insufficient pages,
 - (c) If the surname has changed,
 - (d) If the passport prepared by the Department is lost or destroyed before distribution to the concerned person,
 - (e) If a minor has reached the age of sixteen years and wishes to obtain a passport,
 - (f) If the passport was issued under special circumstances,
 - (g) In other circumstances as prescribed.
15. Passport may be cancelled: (1) The Department may cancel a passport in the following circumstances:-

- (a) If the passport holder informs the Department or Mission that the passport issued in his/her name is lost,

- (b) If the passport is cancelled or annulled by a court order,
- (c) If the passport holder ceases to be a Nepali citizen,
- (d) If it is proven that a non-Nepali citizen has obtained a passport,
- (e) If a passport was obtained by submitting false details,
- (f) If an applicant, having applied for a passport, does not collect it within the prescribed time.

(2) In the event a passport is cancelled pursuant to clauses (a), (b), (c), (d), and (e) of sub-section (1), the Department shall inform the concerned body of the Government of Nepal, foreign missions in Nepal, and the office of Interpol in Nepal.

(3) If a Nepali citizen loses his/her passport abroad and applies to the Mission for a new passport, the Mission shall send a written communication to the Department to cancel the lost passport, specifying all details of the passport holder and the passport number, and shall also inform the immigration office in Nepal, the ministry of foreign affairs of the country where the concerned Mission is located, and foreign missions in that country. 16.

Use of passport: (1) Provisions relating to the use of diplomatic and special passports shall be as prescribed. (2) A holder of a diplomatic or special passport shall surrender such passport to the Department after the purpose under sub-section (1) is concluded. Provided that a person holding a prescribed public office may retain the diplomatic or special passport with him/her for a period as prescribed. Chapter-3 Relating to Travel Permits and Seaman's Record Book 17. Travel permit: (1) The Department and Missions may issue travel permits. (2) The conditions for obtaining a travel permit issued pursuant to sub-section (1) and the circumstances under which it must be issued shall be as prescribed. 18. Seaman's Record Book (Seaman's Passport): (1) The Department or a Mission may issue a Seaman's Record Book (Seaman's Passport) to a Nepali citizen going to work on a ship. (2) If an ordinary passport holder, for the purpose of going to work on a ship, submits an application to the Department or Mission for a Seaman's Record Book (Seaman's Passport) attaching documents as prescribed, the Department or Mission shall, subject to prescribed conditions, issue a Seaman's Record Book (Seaman's Passport). Chapter-4 Relating to Passports Issued in Temporary and Special Circumstances 19. Temporary passport may be issued: If a Nepali citizen abroad has a passport whose validity period has expired, or is lost, destroyed, or worn out and cannot be used, and if he/she applies to the Mission for a new passport, the Mission may issue a temporary passport to him/her for a period of up to nine months until the new passport is issued. 20. Passport issued in special circumstances: (1) If a minor son or daughter of a Nepali citizen has gone and resides abroad, and has reached the age of sixteen years but has not been able to obtain a Nepali citizenship certificate, and if he/she submits an application attaching documents as prescribed along with proof that he/she has not taken the citizenship of a foreign country nor applied for foreign citizenship, the Mission may issue an ordinary passport in his/her name once for a period of up to two years. Provided that if due to circumstances beyond control he/she submits an application stating the reason for not being able to obtain a Nepali citizenship certificate, the Mission may issue an ordinary passport to him/her for an additional period of two years. (2) Within the period under sub-section (1), such passport holder may obtain a Nepali citizenship certificate and obtain an ordinary passport. Chapter-5 Relating to Offenses and Penalties 21.

Offense: If any person commits, causes to commit, or assists in committing any of the following acts, he/she shall be deemed to have committed an offense under this Act:- (a) Obtaining or attempting to obtain a passport or travel permit by submitting false details, (b) Traveling abroad or attempting to travel without

obtaining a passport or travel permit under this Act, (c) Failing to comply with an order or directive given by the Government of Nepal, (d) Using a passport for a purpose other than the purpose for which it was issued, (e) Allowing others to use one's own passport or using a passport in another person's name, (f) Altering the photograph or details in a passport, (g) Malafidely keeping another person's passport under control without his/her consent, (h) Doing any other act in contravention of this Act or the rules made under this Act. 22. Penalty: (1) If any person commits an offense under clause (a), (b), (c), (d), (e), (f), or (chha) of Section 21, such offender shall be liable to a fine of two hundred thousand rupees to five hundred thousand rupees or imprisonment for one year to three years or both. (2) If any person, other than as written in sub-section (1), does any act contrary to this Act or the rules made under this Act, he/she shall be liable to a fine of fifty thousand rupees to one hundred thousand rupees or imprisonment for six months to one year or both. (3) If any person orders or abets the commission of any offense punishable under sub-sections (1) and (2), the offender shall be liable to the same penalty as the principal offender, and an abettor who assists in the commission of the offense shall be liable to half the penalty imposed on such offender. 23. Proceedings under prevailing law not barred: If any act deemed an offense under this Act also constitutes an offense under any other prevailing law, nothing written in this Act shall be deemed to bar the institution of a case and proceeding against such offense under the prevailing law. Chapter-6 Miscellaneous 24. Color, format and size of passport: The color, format, and size of passports issued pursuant to Sections 5, 17, 18, 19, and 20 shall be as prescribed. 25. Fee: (1) No fee shall be charged for issuing diplomatic, special, and service passports. (2) A fee as prescribed shall be charged for issuing ordinary passports, travel permits, Seaman's Record Books (Seaman's Passports), temporary passports, and passports issued in special circumstances. 26.

Passport may be surrendered: (1) An ordinary passport holder may surrender to the Department the passport issued in his/her name if it is no longer required or cannot be kept with him/her for any other reason. (2) The Department shall cancel the passport surrendered pursuant to sub-section (1). 27. Electronic record and personalization: (1) The Department shall process the personal details of the applicant, certified by the concerned body along with the application for a passport, through technological means and carry out the work relating to passport personalization. (2) The Department shall prepare and securely maintain electronic records of passports, travel permits, and Seaman's Record Books (Seaman's Passports) in a format as prescribed. (3) Details of travel permits and Seaman's Record Books (Seaman's Passports) issued by Missions shall be sent to the Department every three months. 28. Documents to be kept safely: (1) Applications for passports and attached documents shall be kept safely for a period of twelve years from the date of issuance of the passport. (2) The Department shall destroy passports cancelled under this Act as prescribed. (3) The procedure for destroying documents under sub-section (1) shall be in accordance with prevailing law. 29. Government to be plaintiff: In cases relating to offenses punishable under this Act, the Government of Nepal shall be the plaintiff, and such cases shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074. 30. Appeal: If the Department refuses to issue a passport or decides to cancel a passport, a person not satisfied may file an appeal in the High Court of the province where the Department is located within thirty-five days from the date of receipt of such notice. 31. Delegation of authority: The Department may delegate some of the powers vested in it under this Act to other bodies or officers as required. 32. Protection of acts done in good faith: No employee shall be personally liable in respect of any act done in good faith under this Act. Provided that nothing in this section shall be deemed to bar any legal action in respect of consequences arising from an act done negligently. 33. Power to frame rules: The Government of Nepal may frame necessary rules for implementing this Act. 34. Power to frame procedures: The Ministry may frame necessary procedures not inconsistent with the objectives of this Act. 35.